

FIRST ENDORSEMENT

Andre Applewhite, Chief Prosecutor, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble Sr., Department Advocate's Office, April 8, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2022-27140 and 2023-28301 against Lieutenant Gabriel Cuevas Tax Registry No. 945633. The case was conferenced on March 19, 2024, before Assistant Deputy Commissioner of Trials Jeff Adler, who approved the negotiated penalty of a Schedule B Command Discipline and the forfeiture of TEN (10) vacation days to run concurrently for DADS No. 2022-27140 and 2023-28301, after accepting the finding(s) of substantiation of the allegations contained in the aforementioned Charges and Specifications for both cases. The charges regarding DADS No. 2022-27140 and 2023-28301 will be dismissed for plea purposes.

Andre D. Applewhite

Chief Prosecutor
New York City Civilian Complaint Review Board

APPROVED

JUL 29 2024
Edward A. Caban
EDWARD A. CABAN
POLICE COMMISSIONER



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2022-27140
BOOK & PAGE NO. Page 1 of 2
PERSONNEL ORDER NO.

RANK/TITLE LT	SURNAME, CUEVAS	FIRST GABRIEL	M.I.	COMMAND 083 PRECINCT
SHIELD NO. 00000	TAX REGISTRY NO. 945633	SOCIAL SECURITY NO.	DATE APPOINTED 01/07/2008	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL [X]
1 . Lieutenant Gabriel Cuevas (Sergeant at the time of this incident), on or about June 17, 2021, at approximately 2311, while assigned to PBBN SU PST and on duty, in the vicinity of § 87(2)(b) Kings County, abused his authority as a member of the New York City Police Department, in that he frisked § 87(2)(b) without sufficient legal authority.	DISMISSED	B - COMMAND DISCIPLINE .00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 10.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Lieutenant Gabriel Cuevas (Sergeant at the time of this incident), on or about June 17, 2021, at approximately 2311, while assigned to PBBN SU PST and on duty, in the vicinity of § 87(2)(b) Kings County, abused his authority as a member of the New York City Police Department, in that he failed to provide § 87(2)(b) with a business card without sufficient legal authority.	DISMISSED	
3 . Lieutenant Gabriel Cuevas (Sergeant at the time of this incident), on or about June 17, 2021, at approximately 2311, while assigned to PBBN SU PST and on duty, in front of § 87(2)(b) Kings County, was discourteous, in that he	DISMISSED	

DC [Signature]
FIRST DEPUTY COMMISSIONER

6/7/24
DATE

POLICE COMMISSIONER'S APPROVAL

☒ Approved

☐ Disapproved

☐ Other Action (Describe)

Edward A. Caban
POLICE COMMISSIONER

7/29/24
DATE



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO.
2022-27140

BOOK & PAGE NO.
Page 2 of 2

PERSONNEL ORDER NO.

RANK/TITLE LT	SURNAME, CUEVAS	FIRST GABRIEL	M.I.	COMMAND 083 PRECINCT
SHIELD NO. 00000	TAX REGISTRY NO. 945633	SOCIAL SECURITY NO.		DATE APPOINTED 01/07/2008
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				
SPECIFICATION		DISPOSITION		RECOMMENDED PENALTY PLEA [X] TRIAL [X]
spoke discourteously to § 87(2)(b) by stating in sum and substance, "Don't talk shit to me, man" without police necessity.				

DC Buvis *6/7/24*
FIRST DEPUTY COMMISSIONER DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
- ☐ Disapproved
- ☐ Other Action (Describe)

Edward A. Cab... *7/29/24*
POLICE COMMISSIONER DATE

**DISPOSITION OF CHARGES**

PD 468-142(Rev. 8-89)-2

CASE NO. 2023-28301
BOOK & PAGE NO. Page 1 of 1
PERSONNEL ORDER NO.

RANK/TITLE LT	SURNAME, CUEVAS	FIRST GABRIEL	M.I.	COMMAND 083 PRECINCT
SHIELD NO. 00000	TAX REGISTRY NO. 945633	SOCIAL SECURITY NO.	DATE APPOINTED 01/07/2008	

RANK/NAME OF COMPLAINANT	COMMAND
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DATE OF CHARGES	DATE TRIAL COMMENCED	DATE TRIAL CONCLUDED
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TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Lieutenant Gabriel CUEVAS, on or about August 13, 2022, at approximately 2355, while assigned to 083 PCT and on duty, in the vicinity of § 87(2)(b) Kings County, engaged in conduct prejudicial to good order, efficiency, or discipline of New York City Police Department, in that LT CUEVAS arrested § 87(2)(b) unlawfully without sufficient legal authority.	DISMISSED	B - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 10.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2. Lieutenant Gabriel CUEVAS, on or about August 13, 2022, at approximately 2355, while assigned to 083 PCT and on duty, in the vicinity of § 87(2)(b) Kings County, in that LT CUEVAS abused their authority as a member of the New York City Police Department, in that LT CUEVAS failed to provide § 87(2)(b) with a business card containing all required information pursuant to the Right to Know Act, without sufficient legal authority.	DISMISSED	

D. L. Brinkman
FIRST DEPUTY COMMISSIONER

6/7/24
DATE

POLICE COMMISSIONER'S APPROVAL

☒ Approved☐ Disapproved☐ Other Action (Describe)

Edward A. Caban
POLICE COMMISSIONER

7/29/24
DATE